



When No ID Means No Internet: Age Verification and the Right to Access Information

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Age verification proposals are [often presented](#) as a simple tradeoff: sacrifice a little privacy to better safeguard children online. But that framing overlooks a more fundamental question. What happens to people who cannot verify their age at all? This is particularly a problem when users are required to prove their age with identity documents.

Age-related restrictions are developing quickly around the world. While they differ radically across jurisdictions, in the past year, we've witnessed a sharp uptick toward mandatory age assurance for social media access but also for other high-risk digital services.

For example:

- In late 2025, **Australia** [became the first country](#) to implement a minimum age requirement for prohibiting children under age 16 from creating or holding social media accounts.
- **India** passed the [Digital Personal Data Protection \(DPDP\) Act](#) that includes mandatory verifiable parental consent and has undertaken ongoing discussions for social media restriction.
- **The United Kingdom** passed the *Online Safety Act* [requiring age verification](#) across a swath of services hosting content considered harmful to users under 18. More than half the states across the **U.S.** [have enacted age verification laws](#).

- An EU Commission's expert [report](#) recommends a ban on social media access for users under 13. It also recommends mandatory age verification for platforms to ensure that users are 'age appropriate.'

The Access Problem

Age verification laws that [are predicated on the necessity of](#) users possessing a current passport, driver's license, credit card, or similar documents proving their identity exclude critical sections of populations. And this problem is global in nature: [Millions of people lack government-issued identification](#) or encounter regular challenges to obtaining or updating it.

Roughly [15 million adult U.S. citizens](#) lack a driver's license, and a further [2.6 million lack any government photo ID](#); leaving large groups blocked from online content or services. The UK has a similar predicament: proof-of-age checks are often reliant on passports, driver's licenses, or other recognized alternatives, which can pose unique challenges to people without these documents.

Much of the advocacy around age verification discusses the [privacy harms](#) of age verification. Yet these measures also threaten something more fundamental: equal access to information and the ability to exercise the right to freedom of expression.

Unfortunately, age verification systems foster unequal access to information and provide an asymmetric solution to find essential information, build community, and weigh in on public discourse. As governments and companies increasingly require users to prove their age before accessing online services, these individuals risk being excluded from large parts of the internet altogether.

Effects on Global Majority Countries

Age verification laws reshape who can speak, who can access information, and who gets excluded from the digital public sphere. In other words, age verification is not a neutral safety measure: it presents a structural barrier to disproportionately exclude certain groups—particularly those in the global majority—and alters the architecture of global online expression. Some of these groups are already marginalized offline, and age verification extends that exclusion into digital spaces.

For instance, [850 million people globally do not have ID](#). Most of these individuals exist in primarily low and middle income countries in Sub-Saharan Africa and South Asia. The World Bank [points out](#) that many are members of marginalized groups and more than half of those lacking access to identity documentation also have children whose births have not been registered. Women are particularly vulnerable and are 8% less likely than men to have an ID. Other vulnerable groups, such as adults in low income countries, are less likely to have an ID when they fall below 25 years, as are those with a primary school education or less or those in rural areas.

A [policy paper](#) from EDRi points out that age verification laws provide quick tech solutions but overlook longstanding structural challenges and undermine the universality of the internet. The analysis finds that age verification laws have serious human rights implications and ironically harm the very individuals they deem to protect. Moreover, these laws depend on the collection of harmful mass data that human rights organizations, including EFF, is [fighting against](#)—and [has for decades](#).

For example:

- In [Morocco](#), a push to restrict children's access would ban under-13s from creating accounts on gaming platforms. This could potentially create challenges for those with IDs that have incomplete information concerning the year of birth. In addition, this push would also [impact those who attempt to leave Morocco](#).
- In [Egypt](#), the [lack of ID cards](#) has created challenges for minority groups such as the Baha'i.
- Stateless individuals would also struggle under age verification laws. The [Rohingya](#), [the world's largest population of stateless people](#), often [lack IDs](#).
- [Kuwait's Bidoon population](#) also lacks proper identification materials. According to [Amnesty International](#), this leads many to rely on standard civil identity cards, which can be restrictive.
- [Nigeria launched a national program](#) to provide ID cards to its population in 2007. Since then, 64.4 million have registered, but that represents just over 30% of the national population.
- The Kafala system, a practice in several countries across the **Middle East**, also introduces challenges for age verification laws. Under this legal framework, [migrant workers' legal residency](#) and employment status are bound to a specific employer. This potentially leaves stateless persons or migrant workers vulnerable to forced labor and restricted movements.

No ID, No Access

[Age verification laws are less about confirming the age](#) of a user and more about creating barriers to online participation that many people cannot reliably scale. The net result is reduced access, more data collection, and an increased chance of unequal or mistaken exclusion from accessing information online.

Nobody doubts the importance of protecting children online. While proponents assert that age verification laws protect minors from harmful material, online harassment, and digital addiction, these laws are not the solution. They subvert fundamental freedom of expression rights and pose significant privacy risks.

EFF has long warned against age-gating the internet. Age verification technology itself is often [inaccurate](#) and [privacy-invasive](#), and [as more countries considering implementing ID-based checks](#), the risks move beyond [censorship](#) and [surveillance](#) toward excluding some people entirely. That's why we're working with groups in the U.S. and around the world to push back against these laws, and why we hope you join our effort.

For more information on how to fight back against dangerous age verification laws, visit our resource hub at eff.org/age

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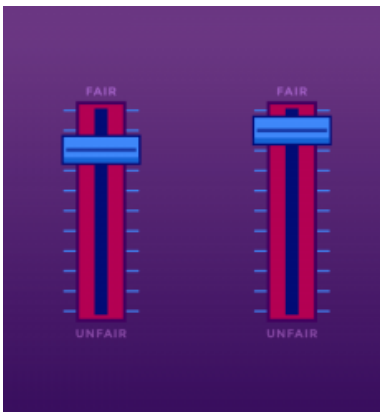


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